

moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information]; *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-42 [same].)

Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (*Id.*; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App. 4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (*Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.)

B. First Cause of Action (Professional Negligence) – DENY

Plaintiff alleges that Defendant negligently performed the placement of his permanent crown on August 6, 2021, causing Plaintiff numbness in his face.

The elements for a cause of action for professional negligence are the same as that of negligence: (i) that defendants had a legal duty to use due care; (i) a breach of such legal duty; and (iii) the breach as the proximate or legal cause of the resulting injury. (*Flowers v. Torrance Memorial Hosp. Med. Ctr.* (1994) 8 Cal.4th 992, 997-998; *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

MICRA (the Medical Injury Compensation Reform Act) defines "professional negligence" as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that the services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital." (Bus. and Prof. Code, § 6146(c)(3); see also *Central Pathology Service Med. Clinic, Inc. v. Super. Ct.* (1992) 3 Cal.4th

181, 187.) Whether a defendant healthcare provider breached a duty owed to the plaintiff patient rests on whether that provider complied with the standard of care in treating the patient. (*Munro v. Regents of the University of California* (1989) 215 Cal.App.3d 977, 983.) The requisite standard of care is determined by the applicable standard then existing in a particular professional community. (*Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844.) Specifically, a health care provider is required only to exercise “that reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by a member of the medical profession under similar circumstances.” (*Munro, supra*, 215 Cal.App.3d at pp. 983-84.)

Here, Defendant fails to meet the initial burden of proof to show Plaintiff cannot establish a claim for professional negligence. “In professional malpractice cases, expert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen. [Citation.]” (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523; *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741 (*Garibay*).) In order to testify as an expert in a medical malpractice case, a person must have enough knowledge, learning and skill with the relevant subject to speak with authority, and he or she must be familiar with the standard of care to which the defendant was held. (Evid. Code, § 720 (a); *Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467.) The expert opinion must be supported by reasoned explanation. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 525 [“The standard necessary on summary judgment “is not satisfied by laconic expert declarations which provide only an ultimate opinion, unsupported by reasoned explanation.”].) (*Id.*)

While Defendant’s expert Dr. Alan Shelhamer is qualified, his expert opinion, however, is not supported by reasoned explanation. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 525.) After reciting Plaintiff’s dental history—which is substantially similar to what Defendant’s statement of facts and the “patient notes” for Plaintiff state—Dr. Shelhamer opines in conclusory terms that Defendant did not violate any applicable standard of care.

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“Although hospital and medical records are hearsay, they can be